

Website Legal Readiness

9 steps • 14 min read • Available from the Launchpad plan

A website without terms of service and a privacy policy is a website without a rulebook — for your customers or for you. This playbook covers the practical legal notices most South African websites need before they take their first customer or site visitor.

WHY IT MATTERS

- The Consumer Protection Act (CPA) sets mandatory disclosures for any business selling to consumers, including cancellation and refund rights for online sales.
- POPIA requires clear disclosure of what data your site collects and why, before you collect it.
- Payment providers and app stores increasingly require published terms and a privacy policy before they will process transactions for you.

Step-by-step

1

List every way your site interacts with a visitor

Forms, checkout flows, chat widgets, newsletter sign-ups, and account creation each trigger different disclosure obligations.

2

Confirm your CPA disclosures for online sales

If you sell goods or services online to consumers, the CPA requires specific pre-contract disclosures and a cooling-off right for certain transactions.

3

Run the Terms of Service wizard

Generate terms covering use of the site, payment terms, limitation of liability, governing law, and dispute resolution in South African-appropriate language.

4

Run the Privacy Policy wizard

Cover what data you collect through the site, cookies and tracking, third-party sharing, and how visitors can exercise their POPIA rights.

5

Add cookie and tracking disclosures

Where you use analytics or advertising cookies, disclose this clearly and obtain opt-in consent where required.

6

Add refund and cancellation terms

State your refund policy and, for online sales to consumers, the applicable cooling-off period explicitly.

7

Publish and link both documents site-wide

Terms of Service and the Privacy Policy should be one click away from every page, not buried in a footer no one finds.

8

Route internal sign-off before publishing

Use on-platform review so whoever owns the website confirms the published terms match what the business actually does.

9

Log publication in the Company Snapshot

Record the publish date and version of each document so you can prove what was live on any given date if a dispute arises later.

Quick checklist

- Every visitor touchpoint mapped
- CPA disclosures confirmed for online sales
- Terms of Service generated and published
- Privacy Policy generated and published
- Cookie and tracking consent implemented
- Refund and cancellation terms stated
- Publish dates logged in the Company Snapshot

RELATED WIZARDS — JUMP STRAIGHT IN

→ **Terms of Service** → **Privacy Policy**

This playbook is general guidance for South African startups and SMEs and is not a substitute for advice on your specific circumstances. Run the linked wizards on The StartUp Legal platform to generate, negotiate, and e-sign the actual documents — each completed run produces a receiver-grade document, a full evidence pack, and an update to your Company Snapshot.